

		For COA 1, alter-ego is sufficiently alleged. (FAC ¶¶ 8, 11.) For pleading purposes on an alter-ego claim, it is sufficient to allege only ultimate rather than evidentiary facts. (<i>Rutherford Holdings, LLC v. Plaza Del Rey</i> (2014) 223 Cal.App.4th 221, 236.) However, the FAC fails to state how the contract at issue was allegedly breached. The assertions in the FAC at ¶¶ 29-32 do not identify any contractual obligation that any defendant failed to fulfill. In addition, as the Opposition concedes, although the FAC states that the contract at issue is attached, the FAC does not attach it. The Demurrer as to COA 1 is therefore SUSTAINED. For COAs 2-4, the FAC again fails to state any cognizable claim. For a fraud claim, every element must be alleged in full, factually and specifically: the policy of liberal construction of pleading will not be invoked to sustain a pleading defective in any material respect. (<i>Tarmann v. State Farm Mut. Auto. Ins. Co.</i> (1991) 2 Cal.App.4th 153, 157.) The particularity requirement necessitates pleading facts that show how, when, where, to whom, and by what means the representations were tendered. (<i>Id.</i>) For a negligent misrepresentation claim, the defendant need not have knowledge of the falseness of the representation or the intent to defraud. But a negligent misrepresentation must ordinarily be as to past or existing material facts: predictions as to future events, or statements as to future action by some third party, are deemed opinions, and not actionable fraud. (<i>Tarmann</i>, supra, 2 Cal.App.4th at 158.) Here, Plaintiff has again just made assertions as to multiple defendants, without adequate specificity. Plaintiff must allege what specifically was said, by whom, to whom, when and where that occurred, and whether it was oral or written. Plaintiff also appears to have based these claims entirely on predictions as to future events, or statements as to future action by some third party, which are deemed opinions, and not actionable fraud. (<i>Tarmann v. State Farm Mut. Auto. Ins. Co.</i> (1991) 2 Cal.App.4th 153, 158.) Greater specificity is also required for the other elements of each of these claims, including the basis for any claim of reasonable reliance. The Demurrer is therefore SUSTAINED as to COAs 2-4. Plaintiff is granted 20 days leave to amend. However, Plaintiff should carefully consider any further amendment and fully plead all facts to support these claims, as further leave to amend should not be assumed. The clerk is to give notice of this ruling.
10	Eymert v. Bok Senior Hotel, et al.	The motion of plaintiffs Peter Eymert, by and through his successor-in-interest Karl Eymert; Karl Eymert; and Petra Eymert (collectively, Plaintiffs) for an order granting Plaintiffs' application for separate judgment against defaulted defendant La Habra Villa LLC (La Habra Villa) is DENIED. "In an action against several defendants, the Court may, in its discretion, render judgment against one or more of them, leaving the action to proceed against the others, whenever a several judgment is proper." (Code Civ. Proc., § 579.)

		"A default judgment may be improper against one of several codefendants if the other has raised defenses which, if proven, would establish the nonliability of the defaulting defendant." (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group June 2026 Update) ¶ 5:263.) "If it appears that the defaulting defendant's liability is dependent upon the answering defendant being held liable, no default judgment is proper." (Id., ¶ 5:264, citing <i>Adams Mfg. & Engineering Co. v. Coast Centerless Grinding Co.</i> (1960) 184 Cal.App.2d 649, 655.) "Similarly, no default judgment can be taken where several defendants are sued on a joint liability, and one of them answers asserting defenses which would exonerate the defaulting defendant from such liability." (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group June 2026 Update) ¶ 5:266, citing <i>Mirabile v. Smith</i> (1953) 119 Cal.App.2d 685, 689.) Here, the complaint and moving papers appear to show that liability of La Habra Villa is dependent upon defendant Bok Senior Hotel, Inc. dba Bok Senior Hotel (Bok Senior Hotel) being held liable. The complaint does not allege misconduct specifically by La Habra Villa. Rather, La Habra Villa is sued as a doe defendant. The complaint alleges Doe Defendants 1 through 10, which includes La Habra Villa, "were the owners, operators, administrators, licensees, and supervisors of BOK SENIOR HOTEL and these individuals each ratified, authorized and/or directed the conduct as hereinafter described and alleged at BOK SENIOR HOTEL, and its respective agents and employees, and are therefore vicariously liable for the acts and omissions of these co-Defendants, their agents, and employees." (Compl., ¶ 7.) The evidence submitted by Plaintiffs all relates to the allegedly negligent care and treatment of decedent Peter Eymert at Bok Senior Hotel. Bok Senior Hotel filed an answer to the complaint in which it denied generally and specifically each and every allegation of the complaint and asserted twenty affirmative defenses. (ROA 167.) Trial in this matter is set to commence on October 5, 2026. As it appears liability of La Habra Villa is dependent upon Bok Senior Hotel being held liable, the Court finds it appropriate to defer default judgment as to La Habra Villa until after trial of the other defendants. Accordingly, the motion for separate judgment is DENIED. Counsel for Plaintiffs shall give notice.
11	Reyes v. General Motors, LLC	O/C
12	Southeast Bank v. Lomingkit	The motion to be relieved as counsel of record for defendant Ramher Lomingkit filed by attorney Nicholas Saranto is DENIED WITHOUT PREJUDICE .